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Tentative Ruling

Re: ***Hernandez v. Poindexter Nut Company, Inc.***
Superior Court Case No. 24CECG01544

Hearing Date: August 11, 2026 (Dept. 503)

Motion: By Defendant Poindexter Nut Company, Inc.'s Counsel to be Relieved as Counsel

Tentative Ruling:

To deny without prejudice. (Cal. Rules of Ct., Rule 3.1362.)

Explanation:

Counsel for defendant Poindexter Nut Company, Inc. ("Counsel") has moved to be relieved as counsel of defendant Poindexter Nut Company, Inc.

"A notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel - Civil (form MC-051)." (Cal. Rules of Ct., Rule 3.1362(a).) "Notwithstanding any other rule of court, no memorandum is required to be filed or served with a motion to be relieved as counsel." (*Id.*, Rule 3.1362(b).) "The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel - Civil (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (*Id.*, Rule 3.1362(c).) "The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel-Civil (form MC-053) and must be lodged with the court with the moving papers." (*Id.*, Rule 3.1362(e).)

Forms MC-051, MC-052, and MC-053 must be used for a motion to be relieved as counsel. Counsel did not use those forms. Accordingly, the motion to be relieved as counsel is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Dakota Enterprises, Inc. v. Thomas Gromis***
Superior Court Case No. 24CECG05534

Hearing Date: August 11, 2026 (Dept. 503)

Motion: by Plaintiffs to Disqualify Defense Counsel

Tentative Ruling:

To take the motion off calendar.

Explanation:

The Action is Abated

On November 13, 2026, this court ordered the present action abated until Plaintiffs comply with Corporations Code section 2203, subdivision (c). This code section further prohibits the maintenance of “any action or proceeding” until the offending party has complied with the provisions outlined in the Code section. On July 16, 2026, Plaintiffs filed their Certificates of Qualification / Registration. However, Plaintiffs did not file “receipts showing the payment of the fees and penalty and all franchise taxes and any other taxes on business or property in this state that should have been paid for the period during which it transacted intrastate business” as required. (Corp. Code, § 2203, subd. (c).) The abatement has not been lifted, thus no proceeding may be maintained. (*Ibid.*)

The Motion Was Improperly Filed

The motion was filed by Mr. Mark Brolin “in pro per” on behalf of Plaintiffs Dakota Enterprises Inc. and Marina Point Capital, Inc. A corporation is not a natural person, and cannot appear in an action in propria persona, but instead must appear only through counsel. (*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 731.) This rule prevents the corporate representative from engaging in the unauthorized practice of law. (See, e.g., *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284, fn. 5.) Here, Plaintiffs have counsel of record. It is unclear why Mr. Brolin filed this motion on his own.

Plaintiffs Provided Insufficient Notice

Further, Plaintiffs' notice of the instant motion was filed on July 27, 2026 with the hearing scheduled for August 11, 2026. The Proof of Service indicates the motion was “Dropped off at a Canadian mailbox for pickup and mailing to the United States location” on or about June 24, 2026. All moving and supporting papers must be served and filed at least 16 court days before the hearing. This timeframe is increased by 20 calendar days if the place of mailing is outside the US. (Code Civ. Proc., § 1005 subd. (b).) The insufficient amount of time between the motion's hearing date and when notice was served and filed results in defective notice, not waived by Defendants.

